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ENGROSSED HOUSE
BILL NO. 3413

and

Woods of the Senate

An Act relating to public finance; amending 62 O.S. 2021, Section 34.36, as amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.36), which relates to annual estimate of funds needed by state agencies; requiring agencies to report on contractors; providing details to be reported on; directing agency to publicly post final consultant report; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 62 O.S. 2021, Section 34.36, as amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.36), is amended to read as follows:

Section 34.36. A. On the first day of October preceding each regular session of the Legislature, each state agency, including those created or established pursuant to constitutional provisions, shall report to the Director of the Office of Management and

1 Enterprise Services and the Chair and Vice Chair of the Legislative
2 Oversight Committee on State Budget Performance an itemized request
3 showing the amount needed for the ensuing fiscal year beginning with
4 the first day of July.

5 B. The forms which must be used in making these reports shall
6 be approved by the Director of the Office of Management and
7 Enterprise Services and the Legislative Oversight Committee on State
8 Budget Performance.

9 C. The forms shall be uniform, and shall clearly designate the
10 information to be given.

11 D. The information provided shall include, but not be limited
12 to:

13 1. A budget analysis of existing and proposed programs
14 utilizing performance-informed budgeting techniques. Such analysis
15 shall be included as a part of the estimate of funds needed;

16 2. A statement listing any other state, federal or local
17 agencies which administer a similar or cooperating program and an
18 outline of the interaction among such agencies;

19 3. A statement of the statutory authority for the missions and
20 quantified objectives of each program;

21 4. A description of the groups of people served by each program
22 in the agency;

23 5. A quantification of the need for the program;

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1 6. A description of the tactics which are intended to
2 accomplish each objective;

3 7. A list of quantifiable program outcomes which measure the
4 efficiency and effectiveness of each program;

5 8. A ranking of these programs by priority;

6 9. Actual program expenditures for the current fiscal year and
7 prior fiscal years and the number of personnel required to
8 accomplish each program;

9 10. Revenues expected to be generated by each program, if any;

10 11. With respect to appropriated state agencies, a detailed
11 listing of all employees and resources dedicated to the provision of
12 financial services including but not limited to procurement,
13 payroll, accounts receivable and accounts payable. The provisions
14 of this paragraph shall not be applicable to the Oklahoma State
15 Regents for Higher Education or to any institutions within The
16 Oklahoma State System of Higher Education; ~~and~~

17 12. A certification that following the effective date of this
18 act and prior to July 1, 2011, no expenditure shall have been made
19 or funds encumbered for the purchase, lease, lease-purchase or
20 rental of any computers, software, telecom, information technology
21 hardware, firmware or information technology services, including
22 support services without the prior written approval of the State
23 Comptroller or his or her designee; and

1 13. A list of all contractors, contract amounts, and contract
2 status. If a contract is incomplete or in pending status, the
3 agency must provide a report on the estimated time of completion.
4 The agency must also list whether the contract is for services or to
5 augment staffing. The report should include any actions taken in
6 response to any recommendations of a consultant contracted with for
7 services. The agency must also publicly post the final consultant
8 report on the state's purchasing website so that it is linked to the
9 original contract.

10 E. These appropriated agencies shall make an itemized estimate
11 of needs for the ensuing fiscal year and the following two (2)
12 fiscal years and request for funds for the ensuing fiscal year and
13 an estimate of the revenues from all sources to be received by the
14 agency during the ensuing fiscal year and the following two (2)
15 fiscal years.

16 F. The Director of the Office of Management and Enterprise
17 Services shall submit to the Governor and the Legislative Oversight
18 Committee on State Budget Performance no later than the fifth day of
19 October a complete list of all spending agencies which have failed
20 to submit budgets by October 1.

21 G. The reports required by this section shall include an
22 itemized listing of outstanding capital lease debt and estimated
23 capital lease needs for the ensuing fiscal year and the following
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1 two (2) fiscal years, and shall be provided on forms prescribed by
2 the Director of the Office of Management and Enterprise Services.

3 H. For the purposes of this section, "capital lease" means a
4 lease-purchase agreement which provides an option for the State of
5 Oklahoma or its agencies to purchase property, including personal
6 and real property, which is the subject thereof and/or a lease
7 agreement that provides an option for the State of Oklahoma or its
8 agencies to lease such property, which is the subject thereof, at a
9 nominal annual amount, after a period in which leased property is
10 rented at fair market value.

11 I. Not later than January 1, the Director of the Office of
12 Management and Enterprise Services shall publish a shared services
13 cost-performance assessment report documenting the amount of each
14 state agency's cost for providing shared services. The lowest
15 ranking state agencies shall enter into a contract with the Office
16 of Management and Enterprise Services for the provision of shared
17 financial services, provided that the Director of the Office of
18 Management and Enterprise Services determines that implementation of
19 such a contract would be feasible and documents that the contractual
20 agreement will result in cost savings or efficiencies to the state.
21 Contracts required by this subsection shall be entered into at the
22 start of the next fiscal year. When a state agency is contracted
23 with the Office of Management and Enterprise Services for the
24 provision of shared financial services, the agency may discontinue

1 using shared services when documentation showing that the agency can
2 provide the services at a lower cost to the state is provided to and
3 approved by the Director of the Office of Management and Enterprise
4 Services. As used in this subsection, "shared services" means
5 process, resource utilization or action as defined by administrative
6 rule. On a yearly basis the Director of the Office of Management
7 and Enterprise Services shall compile and publish a report
8 documenting the cost savings resulting from shared services
9 contracts. The provisions of this subsection shall not be
10 applicable to the Oklahoma State Regents for Higher Education or to
11 any institutions within The Oklahoma State System of Higher
12 Education.

13 SECTION 2. This act shall become effective November 1, 2026.

14 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
15 RESOURCES

16 April 7, 2026 - DO PASS
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